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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
13/582,133	08/31/2012	Ian Clements	95271-863883	6121
23370 7590 10/18/2013 JOHN S. PRATT, ESQ KILPATRICK TOWNSEND & STOCKTON LLP 1100 PEACHTREE STREET SUITE 2800 ATLANTA, GA 30309			EXAMINER IVANOVA, SVETLANA M	
			ART UNIT 1627	PAPER NUMBER
			NOTIFICATION DATE 10/18/2013	DELIVERY MODE ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

ipefiling@kilpatricktownsend.com
jlhice@kilpatrick.foundationip.com
mcollins@kilpatricktownsend.com

Office Action SummaryApplication No.
13/582,133Applicant(s)
CLEMENTS ET AL.Examiner
SVETLANA M. IVANOVAArt Unit
1627AIA (First Inventor to File)
Status
No

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 7/15/2013.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-4 and 6-16 is/are pending in the application.
5a) Of the above claim(s) 9-16 is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-4, 6-8 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☐ All b) ☐ Some * c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
2. ☐ Certified copies of the priority documents have been received in Application No. ____.
3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- 1) ☒ Notice of References Cited (PTO-892)
- 2) ☐ Information Disclosure Statement(s) (PTO/SB/08)
Paper No(s)/Mail Date ____.
- 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date ____.
- 4) ☐ Other: ____.

The present application is being examined under the pre-AIA first to invent provisions.

Election/Restrictions

Applicant's response to the restriction/ election requirement from 7/15/2013 is acknowledged. Applicant has elected with traverse the invention of Group I (claims 1-8). The reason for Applicant's traverse is as follows:

In response to the restriction requirement, Applicants elect Group I (claims 1-8), with traverse. Applicants assert that the Office Action has failed to show a serious burden would be required to examine all the claims together. M.P.E.P. § 803 provides:

If the search and examination of an application can be made without serious burden, the Examiner must examine it on the merits, even though it includes claims to distinct or independent inventions.

The Examiner responds that the requirement that a search not be unduly burdensome, as found in MPEP section 803, is limited to restriction practice, under Title 35 of the United States Code and Title 37 of the Code of Federal Regulations, as it relates to national applications filed under 35 U.S.C. 111(a), and that as such it is not applicable here. The Examiner directs instead Applicant's attention to the discussion of unity of invention under the Patent Cooperation Treaty ("PCT") Articles and Rules, as it is applied for applications entering the National Stage under 35 U.S.C. 371, covered in Chapter 1800, and further notes that nowhere in the PCT rules is there a discussion of search burden. (See MPEP 801). In the instant case, because Applicant has not

distinctly and specifically disputed that there is lack of unity of invention, this is seen as acquiescence with the Examiner's application of this standard.

Applicant has further made a species election of a particular type of cancer. On further consideration of the art, the election of species requirement is hereby withdrawn.

For the foregoing reasons, the restriction requirement is maintained and is hereby made FINAL. Claims 1-4 and 6-8 are pending, and have been examined herewith across their breadth.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of pre-AIA 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

Claims 1-4 and 6-8 are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Ikseer Azam, Vol. IV 19th century, Matba Nizami, Kanpur, 1872 AD, p. 309, TKDL identifier BA4/1854C ("Azam").

Azam discloses a therapeutic compound formulation comprising *inter alia* sandalwood from *S. album* (which encompasses sandalwood oil) together with other pharmaceutically acceptable excipients, which is formulated as oil and is useful in the treatment of cancer. A person of skill in the art would understand this to disclose an

effective amount. Administration is local as liniment. Azam discloses treatment of cancer broadly. A person of skill in the art would understand this to encompass the particular cancers of Applicant's claims 6-8.

Claims 1-4 and 6-8 are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Va gasena, 12th Century- commentator Shaligram Vaisya, Edited Shankar Lalji Jain; Khemraj Shrikrishna Das Prakashan, Bombay, Edn. 1996, page 811, TKDL identifier AK11/3505 ("Va gasena").

Va gasena discloses a therapeutic compound formulation comprising *inter alia* sandalwood heartwood from *S. album* (which encompasses sandalwood oil) together with other pharmaceutically acceptable excipients, which is formulated as medicated oil and is useful in tumor treatment. A person of skill in the art would understand this to disclose an effective amount. Administration is via the nasal route, in a dose as directed by a physician. Va gasena discloses treatment of cancer broadly. A person of skill in the art would understand this to encompass the particular cancers of Applicant's claims 6-8.

Claims 1-4 and 6-8 are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Thiruvalluvar gnana vettian, 10-15th Century A.D., Ed: Mangadu Vadivel Mudalia, Pub: Parthina Nayakar & sons, Thirumagal vilakku press, Chennai, Page 272-278, TKDL identifier GP11/20 ("Thiruvalluvar gnana vettian").

Thiruvalluvar gnana vettian discloses a therapeutic compound formulation comprising *inter alia* sandalwood seed from *S. album* (which encompasses sandalwood oil) together with other pharmaceutically acceptable excipients, which is formulated as medicated oil and is useful in tumor treatment. A person of skill in the art would understand this to disclose an effective amount. The administration is local, as directed by a physician. Thiruvalluvar gnana vettian discloses treatment of cancer broadly. A person of skill in the art would understand this to encompass the particular cancers of Applicant's claims 6-8.

Claims 1-4 are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by US 6,406,706 to Haque *et al.* ("Haque").

Haque discloses the use of α - and β -santalols- found to be the therapeutic ingredients of sandalwood oil- in a composition for the treatment of HPV-induced tumors, such as cancer of the skin and cervix- i.e. for the treatment with an effective amount of both skin and non-skin cancer in a human. (Abstract; col. 1, ll. 22-23; claims 1 and 5). The α - and β -santalols are obtained from at least one *Santalum* species selected from the group consisting of *S. album*, *S. yasi*, *S. papuanum* and *S. spicatum*. (claim 3). The α - and β -santalols are formulated for topical application, e.g. as soap with other excipients, i.e. with pharmaceutically acceptable excipients. (col. 3, l. 56- col. 4, l. 4).

Claim Rejections - 35 USC § 103

The following is a quotation of pre-AIA 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

Claims 6-8 are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over US 6,406,706 to Haque *et al.* ("Haque"), as applied to claims 1-4 above, further in view of Banerjee *et al.*, Modulatory influence of sandalwood oil on mouse hepatic glutathione S-transferase activity and acid soluble sulphydryl level, Cancer Letters, 68 (1993) 105-109 ("Banerjee").

Haque is discussed in the 35 USC 102(b) rejection above.

Haque discloses treatment with sandalwood oil of skin and cervical cancer, but does not explicitly disclose treatment of other specific cancers, per Applicant's claims 6-8.

Banerjee discloses that sandalwood oil from *S. album*, given by oral administration to mice, shows an enhancement of glutathione S-transferase (GST) activity and of acid-soluble sulphydryl (SH) levels, which is suggestive of a possible chemopreventive action of sandalwood oil on carcinogenesis. (Abstract). Measurements in the study are done based on extracts from liver tissue. (p. 106).

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Accordingly, it would have been obvious to a person of skill in the art, based on the combination of Haque and Banerjee to treat different types of cancer with sandalwood oil with a reasonable chance of success. A person of skill in the art would have been motivated to do so as Haque shows sandalwood oil to treat different types of cancer- e.g. of the skin and of the cervix on topical application, and Banerjee further suggests that oral administration of sandalwood oil has a chemopreventative action on carcinogenesis, as exemplified from results obtained from liver tissue (i.e. non-skin related). Based on this disclosure, a person of skill in the art would have been motivated to use sandalwood oil for treating a variety of cancers, to include non-skin cancers.

Claims 6-8 are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over US 6,406,706 to Haque *et al.* ("Haque"), as applied to claims 1-4 above, further in view of Ikseer Azam, Vol. IV 19th century, Matba Nizami, Kanpur, 1872 AD, p. 309, TKDL identifier BA4/1854C ("Azam"), Va gasena, 12th Century-commentator Shaligram Vaisya, Edited Shankar Lalji Jain; Khemraj Shrikrishna Das Prakashan, Bombay, Edn. 1996, page 811, TKDL identifier AK11/3505 ("Va gasena") and Thiruvalluvar gnana vettian, 10-15th Century A.D., Ed: Mangadu Vadivel Mudalia, Pub: Parthina Nayakar & sons, Thirumagal vilakku press, Chennai, Page 272-278, TKDL identifier GP11/20 ("Thiruvalluvar gnana vettian").

Haque, Azam, Va gasena and Thiruvalluvar gnana vettian are discussed in the 35 USC 102(b) rejections above.

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Hague discloses treatment with sandalwood oil of skin and cervical cancer, but does not explicitly disclose treatment of other specific cancers, per Applicant's claims 6-8.

However, sandalwood oil has been used for hundreds of years in India for treatment of cancer broadly, and not just of the particular cancers disclosed in Hague. This is seen from the disclosures of Azam, Va gasena and Thiruvalluvar gnana vettian, whether applied separately, or in combination.

Accordingly, it would have been obvious to a person of skill in the art, based on the combination of Hague, Azam, Va gasena and Thiruvalluvar gnana vettian to treat different types of cancer with sandalwood oil with a reasonable chance of success. A person of skill in the art would have been motivated to do so as Hague shows sandalwood oil to treat different types of cancer- e.g. of the skin and of the cervix on topical application. A person of skill in the art would have been further motivated to do so as traditional medicine sources from India point to the use of sandalwood for treating cancer broadly, and not just a particular type of cancer. Based on this disclosure, a person of skill in the art would have been motivated to use sandalwood oil for treating a variety of cancers, to include non-skin cancers.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to SVETLANA M. IVANOVA whose telephone number is (571)270-3277. The examiner can normally be reached on Mon.-Fri. 8:30-5:00.

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If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Sreenivasan Padmanabhan can be reached on (571)272-0629. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/SVETLANA M. IVANOVA/
Examiner, Art Unit 1627

Notice of References Cited

Application/Control No.

13/582.133

Applicant(s)/Patent Under
Reexamination
CLEMENTS ET AL.

Examiner

SVETLANA M. IVANOVA

Art Unit

1627

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U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
*	A	US-6,406,706	06-2002	Haque et al.	424/400
	B	US-			
	C	US-			
	D	US-			
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Ikseer Azam, Vol. IV 19th century, Matba Nizami, Kanpur, 1872 AD, p. 309, TKDL identifier BA4/1854C
	V	Va gasena, 12th Century- commentator Shaligram Vaisya, Edited Shankar Lalji Jain; Khemraj Shrikrishna Das Prakashan, Bombay, Edn. 1996, page 811, TKDL identifier AK11/3505
	W	Thiruvalluvar gnana vettian, 10-15th Century A.D., Ed: Mangadu Vadivel Mudalia, Pub: Parthina Nayakar & sons, Thirumagal vilakku press, Chennai, Page 272-278, TKDL identifier GP11/20
	X	Banerjee et al., Modulatory influence of sandalwood oil on mouse hepatic glutathione S-transferase activity and acid soluble sulphhydryl level, Cancer Letters, 68 (1993) 105-109

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a))
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.



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9. [AK11/ 2969 Haridradya Taila](#)
size 15768 bytes - 12/15/2009 12:00:26 AM GMT
10. [AK11/ 3505 Haridradi Taila](#)
size 15937 bytes - 12/15/2009 12:00:36 AM GMT

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Search Notes 	Application/Control No. 13582133	Applicant(s)/Patent Under Reexamination CLEMENTS ET AL.
	Examiner SVETLANA M IVANOVA	Art Unit 1627

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SEARCH NOTES		
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PALM inventor search	10/11/2013	si
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